

Date: 30/08/2023

WELCOME LETTER

Dear Mr. Palash Mishra,

Congratulations on your selection to be a part of **Expora Database Consulting Services Private Ltd., (EDCS)**. Welcome to the growing **Expora Database Consulting Services Private Ltd., (EDCS)** Family. It is a pleasure to invite you to be an integral part of Naxeve Group of Companies.

We have enclosed your offer of employment in duplicate along with a checklist of documents you need to furnish at the time of joining.

Please note that the offer of employment is subject to satisfactory completion of your validation of all relevant material facts and information shared by you.

You are requested to join on the date of joining mentioned in your offer of employment. As a part of the joining formalities, you are requested to bring all the documents in original as per the checklist enclosed.

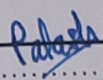
We look forward to you having a great career and long-lasting relationship with **EDCS**

Yours very truly,

For **Expora Database Consulting Services Private Ltd.,**

RATHNAVAT Digitally signed by
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Date: 2023.08.30 15:55:02
+05'30'

Manager Admin & Accounts

Candidate Signature.....

EXPORA DATABASE CONSULTING SERVICES PRIVATE LIMITED.

Regd. Office: # 874, Raineo House, 2nd Floor, Modi Hospital Road, Basaveshwarnagar, Bangalore-79;
Phone: +91-80-23572761, Fax: +91-80-23572761. Email: finance@edcs.co.in www.edcs.co.in,
CIN: U74999KA2009PTC051974

OFFER OF EMPLOYMENT

Strictly Private and Confidential

Date: 30/08/2023

Name: Mr. Palash Mishra
Noida /India

With reference to your application and the subsequent round of discussions you had with us, we are pleased to extend an offer to join EDCS - Expora Database Consulting Services Private Ltd., (hereafter referred to as 'Company') as per the below terms and conditions.

Role: PLSQL Developer

Salary Package#: INR: 4,20,000/- (Rupees Four Lakhs Twenty Thousand Only) per Annum

Your Joining Location would be Noida.

Please refer Annexure 2 for the Salary break up details

Your employment with the Company will be governed by the attached Terms of employment. You are required to carefully read and understand these Terms of Employment as a part of accepting this Offer.

Acceptance and Commencement:

Based on discussions so far you have confirmed that you will be able to join the Company on **11/09/2023**. To indicate your acceptance of this offer and Terms of Employment with EDCS, please confirm your acceptance/rejection by return mail within 05 days (five days) from the date of this letter. If we do not receive your response within 05 days from the date of this letter, the terms of this Offer of employment will be deemed to have been rejected by you, unless otherwise communicated to you by the Company in writing.

By accepting this offer, you agree that you will be joining on the aforementioned date, unless otherwise agreed to in writing with the company. Please revert in case of any clarification

You are required to submit on the day of your joining, a signed copy of this letter along with copies of the following annexures:

- Annexure 1 (Documents at time of joining)
- Annexure 2 (Salary break up)
- Annexure 3 (Declaration)
- Terms of Employment, with your original signature on each page of these documents. Your joining the Company will be subject to submission of all of the above along with the mandatory documents listed in Annexure 1.

Important to note: In the event a government body/authority exercising its jurisdiction and statutory power/authority seeks information pertaining to any aspect of your employment, the Company shall provide such information to the government body/authority without any notification to you. The foregoing shall be applicable to information pertaining to your employment being shared in pursuance

Candidate Signature.....*Palash*

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of statutory requirements / compliance. You may belong to this category and your details will be disclosed to these authorities.

You are required to provide copies of all mandatory documents required by the Company before joining and during the course of your employment, as per the timelines specified/communicated by the Company from time to time. These documents include but are not limited to your education and past employment/s.

The offer of employment and your employment with the Company is dependent on timely submission of such required documents. Non furnishing of mandatory document/s within the specified time shall result in termination of employment.

In case you have any feedback/ suggestion or have any query, feel free to contact any of the following individuals by mail or phone

Primary Point of Contact:

Mail ID: hire.support@edcs.co.in

Contact no: 9535835100

Alternately, if your query remains unanswered, feel free to contact the following by phone.

Contact no: 7899917065 / 9880935356

Acknowledged & Agreed

Palash

Candidate Name: Mr. Palash Mishra

Candidate Signature.....*Palash*.....

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Terms of Employment:

1. Posting

Initially, you will be posted at **Noida**. However, the Company reserves the right to transfer you to any other place / establishment of the Company either existence or which may come into existence, and on such transfer, the Rules and Regulations and the Terms and Conditions of the service applicable to such a place of Posting shall be applicable to you. Similarly, we reserve the right to assign additional / change of duty and transfer you to equivalent post in any other department.

2. Probationary Period

Your probation period will be six (6) months from the date of joining. The Company reserves the right to extend the probationary period, at its sole discretion. During the probationary period, your services may be terminated with one month's notice on either side or payment in lieu of notice.

3. Intellectual Property

In consideration of your employment with the Company, you:

- (a) assign to the Company or its clients all existing and future IP Rights in the Works immediately on their creation; and
- (b) acknowledge that by virtue of this Clause all such existing IP Rights are vested in the Company or its clients and all such future rights will vest in the Company or its clients immediately on their creation.

You must do all things reasonably requested by the Company or its clients to enable the Company or its clients to assure the assignment of the rights under this Clause.

4. Confidential Information

During your employment you agree that you will use Confidential Information solely for the benefit of the Company or its clients. During and after your employment, you agree that you will not use Confidential Information for your own benefit or disclose, divulge, impart or reveal any Confidential Information, trade secrets, dealings or any information concerning the Company or its clients to any person, firm or Company or its clients whatsoever, except where such disclosure is required by law. In addition, you undertake not to use or attempt to use any such information in any manner which may injure or cause loss directly or indirectly to the Company or its business or its clients

Upon termination of your employment, you will be required to either destroy or return to the Company or its clients any Confidential Information in your possession relating to the Company, the Group or any client of the Company.

The Company adopts a rigorous policy in connection with knowledge management, shareholdings in client companies, and non-disclosure of confidential information obtained during, or connected with, your employment with the Company. It is a condition of your employment that you sign a Statement of Compliance on joining the Company.

You acknowledge that damages may be inadequate compensation for a breach of this clause and,

Candidate Signature.....*Palash*.....

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subject to the court's discretion, the Company may seek to restrain, by an injunction or similar remedy, any conduct or threatened conduct, which is or will be a breach of this Agreement.

5. Background Checks

- (a) Notwithstanding any other term in this Agreement or any other document, this offer and your employment with the Company is subject to the completion of certain background checks. In the event that the background checks reveal any information which the Company, in its sole discretion, believes is prejudicial to your employment with the Company, the Company may immediately terminate your employment without notice and with no compensation, or if your employment has not commenced, to immediately revoke any offer of employment that may have been made to you.
- (b) In case if the Background verification is delayed due to unforeseen circumstances, then your start date of employment may get delayed further.

6. Resignation & Termination of Service

After your probationary period, your employment may be terminated by either party at any time by giving written notice of 1 month to the other party and the Company could also terminate your service by making payment in lieu of notice. During the notice period given by you, you are required to compulsorily serve the Company unless the same is specifically relaxed or waived by the Company.

In case you leave our employment without giving notice, we shall have the right to deduct an amount equivalent to the notice period of one-month gross salary as the case may be from any amount that may be payable to you or call upon to make the payment in lieu of shortfall in notice period, besides taking action for breach of contract.

The Company may terminate your employment forthwith without notice if:

- (a) you are dishonest or engaged in serious or persistent misconduct or, without reasonable cause, neglect or refuse to attend to your duties or fail to perform any of your obligations hereunder or breach the terms of this Agreement, or fail to observe the Company's disciplinary rules, codes of conduct, or any other regulations and policies of the Company from time to time in force;
- (b) you are incapacitated by illness or otherwise unable to perform your duties hereunder for a period totalling in aggregate 6 months in any period of 12 consecutive calendar months; Upon ceasing to be employed by the Company hereunder, you shall:
- (c) deliver to the Company/Client's any Tech Spec's, notebooks, manuals, documents, computerization of technical data, customer lists, specifications, files, memoranda, or other assets/records of any nature belonging to the Company or client or any reproduction thereof which may have been provided to you during the course of your employment with the Company, and you shall not undertake or cause any action or deed which might in any way affect the Company's reputation or good standing, or those of its products or services;
- (d) not be entitled to claim any other compensation whatsoever from the Company in respect of such termination which is in addition to any remuneration and other dues upon termination; and cease to be entitled to any benefits under this Agreement.

Candidate Signature.....*Palash*

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Any delay or forbearance by the Company in exercising any right to terminate this Agreement hereunder shall not constitute a waiver of such right.

7. Non-Compete Undertaking

During the period of your employment with the Company and for a period of one year after the date of termination of your employment with the Company, for any reasons whatsoever, or on your ceasing to be an employee of the Company, you will not –

- (a) Engage in any employment or business activity, directly or indirectly in competition with the Company. The term “in competition with the Company” shall mean any business activity, which is the same, or comparable to the business activity, which has or may result in product or services providing the same or comparable to those developed or offered by the Company at any time during the period of your employment;
- (b) Induce any employee of the Company to leave the employment of the Company;
- (c) Solicit the business of any client or customer of the Company (other than on behalf and for the benefit of the Company); or
- (d) Otherwise interfere with any business relationship of the Company.

8. Retirement

You are liable to retire on your attaining the age of sixty years. You could also be retired earlier, if you are found medically unfit.

9. Leave

- (a) You will be entitled for leaves as per the company policy. All leave should be applied in advance to your reporting officer. Leave sanction should be obtained before proceeding on leave. If leave is taken without sanction, it could be treated as absence without pay.
- (b) The holiday year in EDCS runs from 1st January to 31st December each year. If you are in the service of EDCS you are entitled for 10 days of Casual/Sick leaves and 12 days of Earned leave per annum.

10. General

- (a) You are a whole-time employee of the Company. You shall devote your full time and attention to your duties to promote the interest of the Company. You shall not divulge or make known to any person / persons any of our secrets and / or activities of confidential nature. You shall work under the supervision of such person / persons as may be decided upon by the Management of the Company from time to time. You shall undertake that for any developmental work taken up by you either individually or jointly while in the service of the Company, the copy right of the same shall rest with the Company.
- (b) You shall not, during the continuation of your employment, engage in any other employment or activity, in the absence of prior written approval from the Company (which may be withheld by the Company at its sole discretion).

Candidate Signature.....*Palash*.....

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- (c) You shall abide by the Rules and Regulations applicable to you, which are in force of as may be framed and / or amended from time to time. Your hours of work and attendance shall be regulated as per duties entrusted to you from time to time.
- (d) You shall keep us informed of any change in your present residential address, your civil status, and academic / professional qualifications. You shall keep the terms of your employment confidential.
- (e) Please note that the communication forwarded to you at your present address as given by you in your application form shall be deemed to have been correctly served unless any change in address is duly communicated in writing.
- (f) If it is found that you have misrepresented any information in your application for employment or have furnished any false information or have concealed any relevant material facts, your employment is liable to be terminated any time without any notice of compensation in lieu thereof.
- (g) You agree that we have the unconditional right to terminate your employment without cause immediately and without any notice period compensation:
 - i. If you are absent from work without approval for more than three working days in any month, or five working days within any twelve months.
 - ii. If you perform any act, or failure to act, that would constitute grounds for termination of employment of the Company/Client, we shall in this instance terminate and provide a written statement of the grounds for termination to you.
 - iii. If the Company/Client or Company/Client's project manager determines that you are not suitable to continue discharging the role assigned to you and your performance is not satisfactory. We shall in this instance terminate and provide a written statement of the grounds for termination to you.
 - iv. If you are found on double employment that is engaging in additional employment or profession while you are employed with our organization, your employment with EDCS will be terminated with immediate effect.

Notwithstanding anything contained herein, EDCS reserves the right to initiate appropriate legal action against the Employee in addition to termination of his employment, in case of breach of conditions laid out hereunder, which may lead to termination of his/her employment.

Candidate Signature.....*P. K. S.*

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ANNEXURE -1

Required Documents for Onboarding

- Copy of all 10th, 12th and all degree/PG semester mark sheets (last semester mandatory)
- Copy of PAN Card, Aadhaar Card or copy of receipt of Aadhaar enrolment number (mandatory to be submitted on day 1)
- Present address Proof (Telephone bill/Electricity bill/Rental Agreement)
- Passport copy, if available (if not please apply immediately)
- Signed hard copy of the offer letter (mandatory to be submitted on day 1)
- Copies of Offer letter and Hike letter of 3 Previous employers
- Copies of Relieving and Experience Certificate from 3 previous employers
- Six months of Salary Slips of previous company and Form 16
- Bank Statement for the last 6 months with Bank authenticated
- Two copies of your recent passport size photographs (mandatory to be submitted on day 1)

Candidate Signature.....*Pedra*

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ANNEXURE – 2

Salary Annexure

SL #	Particulars	Amount Per Annum (INR)	Amount Per month (INR)
A	CTC	4,20,000	35,000
B	<u>Retirement Benefits</u>		
	Gratuity	8,658	722
	PF -Employer Contribution	21,600	1,800
C	<u>Gross Salary</u>	3,89,742	32,479
	Basic	1,80,000	15,000
	HRA	72,000	6,000
	Special Allowance	1,37,742	11,479
D	<u>Deductions:</u>		
	PF -Employees Contribution	21,600	1,800
	Insurance Upto (Self)	-	
	Income Tax(Depends on investment Declaration)		-
	Professional Tax	2,400	200
E	<u>Net Pay</u>	3,65,742	30,479

Yours very truly,

For Expora Database Consulting Services Private Ltd.,

RATHNAVAT Digitally signed by
RATHNAVATHI U SHETTY
Date: 2023.08.30 15:57:28
+05'30'
HI U SHETTY

Manager Admin & Accounts

Candidate Signature.....*Palash*

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ANNEXURE – 3

DECLARATION

I hereby represent and warrant that as of my effective start date of employment with the Company, I will have: (a) terminated my employment with any current/previous employer and any other employment or contractor relationships; and (b) satisfactorily performed and completed all my obligations which apply/applied to me vis-à-vis any current/previous employer and any other employment or contractor relationships.

I hereby represent and warrant that I have not, during the course of any current/previous employment and any other employment or contractor relationships, entered into or agreed to any arrangement which may restrict, prohibit or debar or conflict or be inconsistent with my acceptance of the offer made by the Company or employment with the Company, including, but not limited to, any time-bound non-compete agreement, restrictive employment agreement or other restrictive terms.

I hereby represent and warrant that I shall not bring into EDCS or its client premises (or use in any manner) any third-party documents (regardless of media) or materials (including but not limited to trade secrets) with myself to EDCS or its clients, including any such documents or materials from my previous employer.

I further represent and warrant that I have not and will not inappropriately disclose or misuse any confidential information obtained from and/or in connection with any current/previous employer and any other employment or contractor relationships. I agree and acknowledge that a breach of this provision shall entitle EDCS to terminate my services with immediate effect.

ACKNOWLEDGED AND AGREED:

Palash

Candidate Name: **Mr. Palash Mishra**

Candidate Signature... *Palash*

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